

		<u>MOTION TO STRIKE</u> Defendant moves to strike Plaintiff's claim for punitive damages. Defendant argues Plaintiff has not alleged the requisite "deliberate, wanton, malicious, wreckful, or willful acts of Defendant" to establish that Plaintiff is entitled to punitive damages. Plaintiff argues that it is not required to prove its punitive damages claim in the complaint and is only required "to allege the ultimate facts upon which that claim rests," which have been alleged. Plaintiff points to paragraphs 16–21, 48, 50 of the Complaint. The Court agrees with Defendant. The Complaint does not state sufficient facts to support a claim for punitive damages against a corporate defendant. (Cruz v. HomeBase (2000) 83 Cal.App.4th 160, 167-168.) The Motion to Strike is GRANTED WITH LEAVE TO AMEND. Defendant to give notice.
107	Jban, LLC v. Carrows California Family Restaurants, LLC, 2024-01371072	Plaintiff Jban, LLC's unopposed Motion for Leave to file a First Amended Complaint is granted pursuant to Code of Civil Procedure §473 and Cal. Rules of Court, Rule 3.1324. The proposed First Amended Complaint should be separately filed and served pursuant to code. Plaintiff to give notice.
108	Leaf Capital Funding v. Strada Collision Centers, 2025-01534127	Plaintiff Leaf Capital Funding, LLC moves for writs of possession against defendants Strada Collision Centers, Inc. and Hamid Hojati for the subject equipment, a 2024 Stealth 350 Down Draft Paint Model RGI-FDD 27 DW. The Court notes that a Default Judgment was entered in plaintiff's favor on April 8, 2026, wherein the Court found that plaintiff shall obtain possession of the 2024 Stealth 350 Down Draft Paint Model RGI-FDD 27 DW, Serial Number 632201. As a writ of possession is a prejudgment remedy and judgment has now been entered against defendants, the applications are DENIED as MOOT. (See Sea Rail Truckloads, Inc. v. Pullman, Inc. (1982) 131 Cal.App.3d 511, 514 ["California's Claim and Delivery law [citations] authorizes the issuance of a pre-judgment writ of